IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.138

C.P.(CAA)/42(AHM)2021 in C.A.(CAA)/25(AHM)2021

Proceedings under Section 230-232

IN THE MATTER OF:

Swayambhu Leasing and Finance Limited **.....Applicant**
Himson Knitting Industries Private Limited

Order delivered on ..28/11/2022

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Shivram Ganeshan, Ld. Adv.
For the Respondent : Ms. Kinjal Trivedi, Ld. Adv. (for Income Tax Department)

ORDER

Earlier, the Income Tax Department had objected to the scheme stating that it is against public policy. However, Learned Counsel for the Income Tax Department today submits that they have no objection to approve the scheme provided that the tax demand is paid by the Petitioner. We direct the Income Tax Department to give no objection, if any, accordingly within one week.

The matter stands adjourned to 20.12.2022.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

Rajeev